

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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LACEY BERRY

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT,
JOSEPH SPATARO, TAX # 945402, NBBN.,
INDIVIDUALLY AND AS A POLICE
OFFICER, SGT. ADAN MUNOZ, TAX # 935372,
NBBN, INDIVIDUALLY AND AS A POLICE
OFFICER, DET. FAWAD KHAN, TAX # 925537,
NBBN, INDIVIDUALLY AND AS A POLICE
OFFICER, AND DET VINCENT BARESE,
SHIELD # 1540, NBBN PCT, INDIVIDUALLY
AND AS A POLICE OFFICER,

Defendants.

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**SUMMONS WITH
VERIFIED COMPLAINT**

Index No.:

Dated Purchased:

Plaintiff designates Kings
County as the place of trial.
The basis of the venue is place
where the cause of action arose:

To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve
a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of
appearance, on the Plaintiff's Attorney with twenty (20) days after the service of this summons,
exclusive of the day of service, (30) days after the service is complete, if the summons is not
personally delivered to you within the State of New York; and in case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
This 16th day of January, 2015

EMDIN & RUSSELL, LLP.
Jeffrey L. Emdin, Esq.,
Attorneys for Plaintiff
499 Seventh Avenue, Floor 12N
New York, New York 10018
(212) 683-3995

Defendants address:

City of New York
c/o Corporation Counsel,
City of New York
100 Church Street
New York, New York 10007

Police Officer Joseph Spataro
Tax # 945402
c/o NBBN

Sgt Adan Munoz
Tax# 935372
c/o NBBN

Det Fawad Khan
Tax # 925537
c/o NBBN

Det. Vincent Barese
Shield #1540
c/o NBBN

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SHIELD NUMBER 1540, NBBN PCT,
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The plaintiff, Lacey Berry, by his attorneys, Emdin & Russell, LLP complaining
of the defendants, respectfully shows to this court and alleges:

1. Upon information and belief that at all times hereinafter mentioned, the
defendant, The City of New York, hereinafter referred to as “City”, was, and still is, a municipal
corporation duly organized and existing under, and by virtue of, the laws of the State of New
York.

2. Upon information and belief at all times hereinafter mentioned, the defendant, the
City of New York, i.e. “City”, its agents, servants and/or employees operated, maintained and
controlled the New York City Police Department, hereinafter referred to as “NYPD”, including
all the police officers and correction officers therein.

3. Upon information and belief, at all times hereinafter mentioned, and on the 16th

day of January, 2014, Police Officer Joseph Spataro, hereinafter referred to as “Spataro” was employed as a Police Officer by the “City” and/or “NYPD” and assigned to NBBN unit, and at all relevant times set forth below acted in the capacity of a police officer. Upon information and belief his tax registry number is 945402 and shield # is 31616.

4. Upon information and belief at all times hereinafter mentioned and on the 16h day of January, 2014, “Spataro”, was acting within the scope of his employment as a police officer and under the direction of the “City” as their agent, servant and/

5. Upon information and belief, at all times hereinafter mentioned, and on the 16th day of January, 2014, Detective Vincent Barese, hereinafter referred to as “Barese” was employed as a Police Officer by the “City” and/or “NYPD” and assigned to the NBBN, his shield number is 1540, and at all relevant times set forth below acted in the capacity of a police officer.

6. Upon information and belief at all times hereinafter mentioned and on the 16th day of January, 2014, “Barese” was acting within the scope of his employment as a police officer and under the direction of the “City” as their agent, servant and/or employee.

7. Upon information and belief, at all times hereinafter mentioned, and on the 16th day of January, 2014, Sgt. Adan Munoz, hereinafter referred to as “Munoz” was employed as a Police Officer by the “City” and/or “NYPD” and assigned to NBBN unit, and at all relevant times set forth below acted in the capacity of a police officer. Upon information and belief his tax registry number is 935372.

8. Upon information and belief at all times hereinafter mentioned and on the 16th day of January, 2014, “Munoz”, was acting within the scope of his employment as a police

officer and under the direction of the “City” as their agent, servant and/or servant. Upon information and belief Munoz, on January 16, 2014 was Spataro’s, Kahn’s and Barese’s supervisor.

9. Upon information and belief, at all times hereinafter mentioned, and on the 16th day of January, 2014, Det. Fawad Khan, hereinafter referred to as “Khan”, was employed as a Police Officer by the “City” and/or “NYPD” and assigned to NBBN unit, and at all relevant times set forth below acted in the capacity of a police officer. Upon information and belief his tax registry number is 925537.

10. Upon information and belief at all times hereinafter mentioned and on the 16th day of January, 2014, “Khan”, was acting within the scope of his employment as a police officer and under the direction of the “City” as their agent, servant and/or employee.

11. Collectively Spataro, Barese, Munoz and Khan will hereafter be referred to as the “officers”.

12. Upon information and belief, on January 16, 2014 the “officers”, individually and/or collectively, were acting under and required to follow the New York City Police Patrol Guidelines.

13. On the 16th day of January, 2014, plaintiff Lacey Berry, hereinafter referred to as “Berry” was a resident of the State of New York, County of Kings.

14. That on January 16, 2014, at approximately 4:00 p.m. The plaintiff, Berry was lawfully walking in the vicinity of 815 Greene Avenue, Brooklyn, NY, hereinafter referred to as “the location”.

15. At that time and location, the plaintiff was approached by, upon information and

belief, Spataro, who stated “where the fuck are you coming from”.

16. When the plaintiff responded “none of your business, he was forcefully grabbed by Spataro.

17. The plaintiff had committed no crime and was not engaged in any criminal or suspicious activity when he was stopped, grabbed and seized.

18. Spataro was not in NYPD uniform when he grabbed Berry, and he failed to identify himself as a police officer.

19. Spataro searched the plaintiff and did not find any contraband.

20. Berry demanded to see Spataro’s identification when Spataro claimed that he was a police officer, and Spatro flashed his badge.

21. Berry demanded to see Spataro’s supervisor at the scene. Spataro held the plaintiff while waiting for the Sergeant to arrive.

22. Upon information and belief Munoz and Kahn arrived at the “location”. Upon information and belief Barese was in the nearby vicinity.

23. Berry attempted to address the Sergeant, who ordered the plaintiff to put his hands up.

24. Once the plaintiff raised his hands, Khan grabbed one hand, and upon information and belief Spataro grabbed the other. Munoz punched the plaintiff in the stomach, chest/ ribs.

25. Upon information and belief Khan grabbed the plaintiff’s arm and violently jerked it behind the plaintiff’s back while repeatedly striking the claimant in the back with his knee.

26. Munoz continued to punch the plaintiff and upon information and belief Khan

threw him against a gate.

27. The plaintiff was handcuffed and thrown over the trunk of a car.

28. The plaintiff was searched, and upon information and belief Khan found a swiss army knife in the plaintiff's rear pants pocket.

29. Munoz asked "what the fuck are you doing with this fucking knife?" However when the plaintiff told him that he had it for work purposes, Munoz said "shut the fuck up" and punched the plaintiff in the ribs.

30. The plaintiff was put into the back of the unmarked police car.

31. Upon information and belief a witness attempted to videotape what the police were doing but was ordered not to by a police officer.

32. Munoz ordered Spataro to sit next the plaintiff in the rear of the unmarked vehicle.

33. The plaintiff requested to be transported in a marked patrol car. Munoz stated that "this isn't Burger King, you can't have it your way".

34. Spataro sat next to the plaintiff in the rear of the police car.

35. Spataro looked at the plaintiff and stated "you think I'm a fucking pussy", and then said "Sarge he thinks I'm a pussy" and struck the seat headrest.

36. Munoz turned around and said in sum and substance "I didn't do time in Iraq for a fuck'n nigger to tell me how to do my job, kick his fucking ass".

37. Spataro proceeded to grab the plaintiff and shake him; he struck the plaintiff in the body repeatedly as well as his thigh and the back of his neck, while the plaintiff was in handcuffs and helpless. Munoz was present during the assault and battery.

38. The plaintiff was brought in handcuffs before the desk sergeant at the 81st pct..

39. The plaintiff attempted to report the brutality to the desk sergeant, however he was told to “shut the fuck up” and Munoz told Spataro to “get him the fuck out of here”.

40. Upon information and belief the witness who attempted to videotape the incident went to the 81st pct to inquire about the plaintiff. The Desk Officer told him that there was no Lacey Berry in the precinct. Upon information and belief the witness observed officers that her recognized from the “location” who also denied the presence of Lacy Berry at the precinct. Upon information and belief Munoz threatened to lock the witness up if he didn’t leave the precinct.

41. Spataro escorted the plaintiff away, towards the holding cell area, while attempting to find out the plaintiff’s name. The plaintiff refused to disclose his name and refused to talk until he spoke with his attorney.

42. The plaintiff, while still in handcuffs, was made to sit on a bench in the holding cell area. He was cursing at the officers.

43. Munoz ordered Spataro to “take off his cuffs and get the fuck out of here”.

44. However, when the plaintiff saw Munoz start to take off his vest he immediately started screaming for help.

45. Munoz attacked the plaintiff, punching the plaintiff in the head and body while the plaintiff was still in handcuffs sitting on the bench.

46. Spataro held the plaintiff while Munoz was punching him and upon information and belief Spataro too struck the plaintiff once or twice

47. The plaintiff’s screams for help went unanswered despite the presence of officers in the precinct who had the ability to intervene, including upon information and belief Khan,

Barese and the Desk Sergeant..

48. Munoz grabbed the hood of plaintiff's sweatshirt and pulled it down over his head, and then repeatedly struck the plaintiff in the face, causing the plaintiff's nose to break and knocking him unconscious.

49. The plaintiff collapsed and then, upon information and belief, was dragged from the floor and thrown into a jail cell, which was occupied by, upon information and belief, Daryl Carter.

50. When the plaintiff regained consciousness his hands were still handcuffed, his legs were shackled and he was lying on the floor in a pool of blood.

51. The plaintiff repeatedly requested medical attention but he did not receive prompt medical attention despite his obvious need.

52. Not one officer intervened, stopped or mitigated the excessive use of force, despite the ability to do so.

53. Not one officer reported the misconduct.

54. Despite the plaintiff's obvious need for medical attention he was not treated for approximately one hour. When the plaintiff was transported to Woodhull Hospital it was in shackles and handcuffs. The plaintiff was treated for a bilateral nose fracture and other injuries he sustained from the police.

55. Upon information and belief Spataro came to Woodhull Hospital and either he or another officer spoke to the Dr who wanted to admit the plaintiff but did not after speaking with the officer(s)

56. Spataro and one other officer, upon information and belief Barese, transported the

plaintiff from the Hospital to the 81st pct., where he was placed in a holding cell before being transported to the 73rd pct.

57. The plaintiff's requests for additional medical attention at the 73rd pct., were ignored.

58. The plaintiff was transported in handcuffs from the 73rd pct., to Kings County Central Booking.

59. Once again the plaintiff requested additional medical attention and approximately five hours later he was again transported back to Woodhull Hospital for additional treatment.

60. After he received medical treatment at Woodhull Hospital he was transported back to Central Booking in handcuffs and placed in a holding cell until he was arraigned on January 17, 2014.

61. Meanwhile, upon information and belief, the Internal Affairs Unit of the NYPD was notified of the incident in the precinct.

62. Upon information and belief the Internal Affairs Bureau of the NYPD are charged with the responsibility to investigate, among other things, allegations of excessive use of force.

63. Upon information and belief two officers from Internal Affairs interviewed a prisoner who was locked up in a holding cell, Daryl Carter, who informed them that he witnessed the police officers viciously strike the plaintiff while Lacey Berry was in handcuffs. Upon information and belief, in response to IAB officers' questioning he denied seeing Berry attempting to head butt anyone,

64. Upon information and belief the Internal Affairs Officers attempted to have witness Carter identify the offending officers by showing him old "rookie" photos of the officers,

which did not look like the way they appeared on January 16, 2014.

65. Upon information and belief Carter's statements to Internal Affairs were not conveyed to the Kings County District Attorney's Office, who prosecuted the plaintiff for attempting to assault and harass Spataro, by attempting to head butt him.

66. At his arraignment the plaintiff was falsely charged with criminal possession of a weapon in the fourth degree, harassment in the second degree, attempted assault and harassment in the second degree under docket number 2014kn004260.

67. Prior to the plaintiff's arraignment, Officer Spataro was interviewed by and provided false statements to Assistant District Attorney Eva Oginar, of the Kings County District Attorney's Office regarding the plaintiff's arrest.

68. Likewise, on January 17, 2014 Detective Khan was interviewed by and provided false statements to Eva Oginar of the Kings County District Attorney's Office regarding the plaintiff's arrest.

69. Said statements by Spataro and Khan falsely claimed that at the aforementioned time date and location Spataro observed the plaintiff walking in the street with currency in his hand; that Spataro observed the plaintiff touch hands with another individual and exchange currency and separate.

70. The statements to the Kings County District Attorney's Office also falsely stated that the plaintiff had a bulge in his pocket; that he gave conflicting residence information and he became combative and threatened Spataro.

71. Further, the statements that they made to the Kings County District Attorney's Office also falsely claimed that Spataro observed a gravity knife in plaintiff's jacket pocket.

72. With regard to the second incident which occurred inside the 81st pct., Spataro and Khan falsely reported to the Kings County District Attorney's Office that defendant jumped up from the bench and attempted to head butt Spataro; that there was a struggle and when the plaintiff fell to the floor he hit his face breaking his nose.

73. These statements were false and made with the intent of prosecuting the plaintiff for crimes that he did not commit.

74. Khan is listed as the arresting officer on the plaintiff's police reports.

75. The arrest reports indicate that the plaintiff was arrested for felony possession of a weapon; i.e penal law 265.02. The reports further falsely state that the knife was in plain view.

76. Spataro is listed as the person who recovered the knife and vouchered it as evidence. Munoz signed off on the form vouchering the evidence.

77. The knife that was vouchered as evidence was a "gravity knife", and not the knife recovered from the plaintiff's pants pocket.

78. Munoz is listed as the supervising officer who approved of the arrest and the arrest paperwork.

79. The police reports also falsely claim that the plaintiff lunged at a police officer and attempted to head butt the officer.

80. The plaintiff, who is a licensed security guard, had his arrest reported to the State of New York Division of Licensing Services, by the Division of Criminal Justices Services.

81. Upon information and belief the Division of Criminal Justice Services is mandated to report the arrest and charges of licensed security guards. They reported that the plaintiff was arrested for attempted assault in the second degree, criminal possession of a weapon

in the third degree and resisting arrest.

82. Upon information and belief the plaintiff's security license was suspended due to his arrest.

83. On February 4, 2014, Joseph Spataro signed a supporting deposition attached to a Superceding Information for docket number 2014KN004260 which falsely charged the plaintiff with committing the crimes of harassment in the second degree, criminal possession of weapon, attempted assault in the third degree and harassment in the second degree.

84. The Supporting Deposition was signed under the penalties of perjury by Spataro.

85. The Superceding Information and the Supporting Deposition were signed with the intent to prosecute the plaintiff for crimes that he did not commit.

86. The Superceding Information falsely stated that a gravity knife was recovered from the plaintiff's jacket pocket, that the plaintiff threatened to "fuck up" Spataro, and that the plaintiff lunged at Spataro inside the 81st pct. and threatened him.

87. That as a result of the false charges the plaintiff was required to appear in court on January 17, March 6, April 29, July 3, August 6, September 16, October 10 and October 31, 2014.

88. That as a result of the false charges the plaintiff was caused to spend monies on legal fees to defend himself.

89. All charges were dismissed upon the application of the Kings County District Attorney's Office on October 31, 2014, prior to the commencement of hearings and trial.

90. That notice of the plaintiff's claim and notice of intention to sue for damages, as well as a Supplemental and Amended Notice of Claim the nature of the claim and the date of, the

time when, the place where and the manner in which the claim arose were duly served upon the comptroller of the defendant "City".

91. That a 50(h) hearing was held on December 9, 2014.

92. That more than 30 days have elapsed since the notice of claim and intention to sue has been served upon the defendants and the said defendants have neglected or refused to make any adjustment or payment thereof.

93. That this action is commenced within one year and 90 days after the cause of action arose.

94. It is hereby alleged, pursuant to CPLR 1603, that this action is exempt from the operation of CPLR 1601 from the operation of CPLR 1601, by reason of one or more of the exemptions provided in CPLR 1602.

AS AND FOR A FIRST CAUSE OF
ACTION ON BEHALF OF PLAINTIFF
FOR FALSE IMPRISONMENT

95. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "94" with the same force and effect as if more fully and at length set forth herein.

96. That beginning on or about the 16th day of January, 2014, at or about approximately 4:00 p.m. at or near the "location" until the plaintiff's arraignment on January 17, 2014, the defendants, their agents, servants and/or employees detained and imprisoned plaintiff without any just cause or grounds.

97. That said imprisonment was caused by the defendants, their agents, servants,

and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, or cause to believe that the plaintiff was guilty of any crimes for which he was charged.

98. The plaintiff was wholly innocent of all criminal charges and did not contribute in any way or manner to his arrest and imprisonment by the defendants, their agents, servants and/or employees, and was forced to submit to the aforesaid arrest and imprisonment entirely against his will.

99. That the defendants, their agents, servants and/or employees, as set forth above, intended to confine the plaintiff; the plaintiff was conscious of the confinement; he did not consent to the confinement; and the confinement was not otherwise privileged.

100. That the plaintiff was confined against his will until he was arraigned in the evening hours of January 17, 2014 when he was released upon his own recognizance.

101. That by reason of the aforesaid false imprisonment and detention, plaintiff was subjected to great indignity, humiliation, loss of work and loss of freedom and the said plaintiff has been otherwise damaged.

102. That by reason of the aforesaid, the plaintiff has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

AS AND FOR A SECOND CAUSE OF
ACTION ON BEHALF OF PLAINTIFF
FOR FALSE ARREST

103. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "102" with the same force and effect as if more fully and at

length set forth herein.

104. That beginning on or about the 16th day of January, 2014, at or about approximately 4:00 p.m. at the “location”, the plaintiff was handcuffed and placed under arrest by the defendants, their agents, servants and/or employees without any just cause or grounds, and held against his will under full force of arms..

105. That said arrest was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, and based on an illegal stop and search of the plaintiff, when the defendants lacked cause to believe that the plaintiff committed, or was about to commit a crime or was guilty of any crimes.

106. The plaintiff was wholly innocent of all criminal charges and did not contribute in any way or manner to his arrest and imprisonment by the defendants, their agents, servants and/or employees, and was forced to submit to the aforesaid arrest and imprisonment entirely against his will.

107. That the defendants, their agents servants and/or employees, as set forth above, intended to seize, search, and arrest the plaintiff; that the plaintiff was conscious of the arrest and confinement; the Plaintiff did not consent to the arrest and confinement; and the arrest was not otherwise privileged.

108. That by reason of the aforesaid false arrest, plaintiff was subjected to great indignity, humiliation, stress and loss of freedom and the said plaintiff has been otherwise damaged.

109. That by reason of the aforesaid, the plaintiff has been damaged in an amount

exceeding the jurisdictional limits of the lower courts.

AS AND FOR A THIRD CAUSE OF
ACTION ON BEHALF OF THE PLAINTIFF
FOR ASSAULT AND BATTERY

110. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "109" with the same force and affect as if more fully and at length set forth herein.

111. The plaintiff was seized, searched, held, handcuffed, punched, kneed, struck, threatened, shackled and physically and emotionally brutalized by the defendant, "City", and the "NYPD" its agents/servants, and/or employees, including defendants Spataro, Munoz and Khan.

112. That all said contact was committed without the plaintiff's permission or consent.

113. That all said contact was unlawful and without privilege.

114. That the use of force was excessive and without justification.

115. That all contact committed by defendants through their agents, servants, and/or employees, including defendants "Spataro", "Munoz" and/or "Khan", was offensive to plaintiff and caused him to fear further contact and imminent harm, and caused plaintiff to sustain physical and/or psychological injury.

116. That the above acts committed by the defendants constituted an assault and/or battery of the plaintiff.

117. That by reason of the aforesaid, the plaintiff, has been damaged in a sum exceeding the jurisdictional limits of lower courts.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF FOR NEGLIGENCE

118. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "117" with the same force and affect as if more fully and at length set forth herein.

119. That the defendant, "City" was careless and reckless in hiring, retaining, training, assigning, failing to retrain, in monitoring, supervising and promoting as and for its employees, defendants "Spataro", "Khan", "Munoz" and "Barese", in that said employee(s) lacked the experience, deportment and ability to be employed by the defendants in the capacity in which they were utilized, i.e. as police officers; in that the defendant, "City" failed to exercise due care and caution in its hiring and promoting practices; in that the defendant "City" failed to investigate the above named employee's backgrounds; in that the City failed to properly train, supervise and monitor the 'officers; and in that that the defendant City was negligent in disciplining, retraining and retaining the named defendant officers;' and in that the defendants, their agents, servants and employees, were otherwise careless, negligent and reckless.

120. That upon information and belief the City by and through its agents had received numerous civilian complaints and/or lawsuits, against defendants "Spataro", "Khan" and "Munoz" and/or the NBBN unit that they were assigned to, prior to their stop, seizure, search, discourtesy, fabrication of evidence and assault and battery of Berry on January 16, 2014.

121. That the City failed to properly retrain said officer, negligently continued to employ said officers, negligently promoted and assigned Munoz to be a supervisor, negligently retained Munoz, Khan and Spataro despite evidence of their police misconduct and continued to

assign said officers to act in an undercover capacity without proper supervision, training and discipline.

122. That the ‘officers’, the while acting within the scope of their employment, were negligent in that each failed to use such care in the performance of his police duties as a reasonably prudent and careful police officer would have used under similar circumstances; in that each was negligent, careless and reckless in the manner in which they investigated and/or performed his police dates; in that they failed to intervene or mitigate police misconduct; in that the police department permitted or condoned the false arrest, and/or false documentation submitted by these and other officers; in that they failed to secure prompt and necessary medical attention; and in that they failed to timely notify the Kings County District Attorney’s Office of exculpatory information; and in that the defendants, their agents, servants and/or employees were otherwise careless, reckless and negligent.

123. That the aforesaid occurrence, to wit: assault and battery, false arrest and imprisonment, malicious prosecution, and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the defendants, its agents, servants and/or employees including defendants “Spataro”, “Khan”, “Munoz” and/or “Barese” without any negligence on the part of the plaintiff contributing thereto.

124. That by reason of the aforesaid, the plaintiff, was imprisoned, lost his freedom, and stressed, and he was thereby damaged.

125. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court.

AS AND FOR A FIFTH, SIXTH AND SEVENTH CAUSES OF ACTION:
FOR VIOLATIONS OF PERSONAL CONSTITUTIONAL RIGHTS UNDER
42 U.S.C. 1983, 1985 AND 1986 AGAINST THE CITY OF NEW YORK

126. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "125" with the same force and effect as if more fully and at length set forth herein.

127. That on or about the 16th day of January, 2014 at or about approximately 4:00 p.m. at the "location" the "officers" were present thereat as part of their regular and official employment as police officers for the defendant, "City".

128. Plaintiff was lawfully and properly thereat, when the "officers" acting as agents, servants and/or employees of the defendant "City", forcibly stopped, seized and frisked the plaintiff absent just cause, provocation or reason. The plaintiff had not engaged in any criminal conduct or suspicious activity.

129. When the plaintiff requested to see the officers identity and badge number, and requested the presence of a Sergeant, he was retaliated against by the officers who assaulted battered and then frisked and handcuffed the plaintiff.

130. Upon information and belief the officers were required to fill out a stop, question and frisk report.

131. Upon information and belief they did not fill out and submit a stop, question and frisk report or stop question and frisk report worksheet as required.

132. Upon information and belief the officers fabricated a reason for searching the plaintiff.

133. Upon information and belief the officers fabricated the evidence that they allegedly recovered from the plaintiff.

134. Further the officers present at the plaintiff's arrest failed to report the false arrest.

135. Likewise when the Munoz, Spataro and/or Khan used excessive, unjustified force, no officer intervened or reported the misconduct as required by the New York City Patrol Guidelines,

136. Unnecessary and excessive use of force took place at the "location" in front of witness who attempted to videotape the violation.

137. One or more of the officers ordered the witness to stop videotaping the encounter, thereby insulating their misconduct.

138. The plaintiff was also assaulted in a police car and inside the 81st pct., both times while in handcuffs, in handcuffs and while the plaintiff was in custody.

139. Upon information and belief to date no disciplinary action has been taken against the offending officers for engaging in said conduct or for failing to intervene, stop it or report it.

140. That in order to cover up their misconduct the officers, individually and/or collectively conspired to file false police reports, voucher false evidence, give false statements and/or sign a false criminal court complaint for the purpose of falsely imprisoning, falsely arresting and/or maliciously prosecuting the plaintiff.

141. That plaintiff was called a "nigger" by Munoz and was humiliated, and debased.

142. The plaintiff is an African American male.

143. The officers individually and /or collectively, failed to provide the plaintiff with prompt and necessary medical treatment.

144. That said acts constituted an illegal seizure of the plaintiff and deprived plaintiff of his rights and liberties as set forth in the 4th and 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Section 1983 and/or 1986.

145. That said acts constituted acts of cruel and unusual punishment and deprived plaintiff of his rights and liberties as set forth in the 8th and 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Section 1983, 1985 and/or 1986.

146. That said acts constituted acts violated the plaintiff's freedom of speech as protected under the 1st and 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Section 1983, 1985 and/or 1986.

147. That said acts constituted acts of fabricating evidence, filing false reports and giving false statements and deprived plaintiff of his rights and liberties as set forth in the 5th and 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Section 1983, 1985 and/or 1986.

148. That plaintiff as an African American man was deprived of his right to equal protection under the law and was targeted and his rights violated based upon his race, a violation of the equal protection clause under the 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Section 1983, 1985 and/or 1986.

149. That the officers conspired by and through their conduct, including among other things their overt acts, their failure to intervene stop and report, threatening witnesses, and the falsification of reports and evidence, to deprive or hinder the plaintiff's right to justice, and to injure him.

150. Upon information and belief the City was on notice of defendant Munoz' history of violence, discourtesy, excessive force, threats, and misconduct but acted with deliberate indifference thereto and continued to not only employ Munoz but allowed him to serve in a supervisory capacity.

151. Upon information and belief, prior to January 16, 2014, Munoz was named in 11 cases with the Civilian Complaint Review Board with five allegations of the use of force.

152. Upon information and belief in 2007 Munoz threatened his then wife, Melodie Munoz, and made suicidal threats. Upon information and belief he was placed on modified duty.

153. In 2012 another domestic incident was reported against Munoz.

154. On March 12, 2013 Munoz was placed on modified duty.

155. Due to excessive complaints against him, Munoz was placed in a level 1 Force Monitoring category. Upon information and belief that was due to having three or more CCRB complaints made against him within a one year time period.

156. In addition, upon information and belief Munoz even had allegations of missing property and evidence discrepancy made against him.

157. Upon information and belief Munoz was also investigated for endangering the welfare of a minor.

158. Upon information and belief in March 2013 Munoz was placed on modified assignment and issued an order of protection. Upon information and belief Munoz was also placed on modified assignment in 2007.

159. Upon information and belief Munoz was appointed to the NYPD police force in 2004.

160. Complaints against Munoz were almost immediate.

161. In April 2005 a complaint for using offensive language was made against Munoz.

162. In May 2005 it was alleged that Munoz threatened to damage and seize property.

163. In September 2005 Munoz was accused of conducting an improper stop, frisk and search and being discourteous.

164. In May 2007 Munoz was again accused of an improper stop and search, as well as use of force, threats, discourtesy and threat of arrest.

165. In November 2008 a complaint against Munoz was made alleging that the complainant's vehicle was improperly stopped, the occupant improperly searched, and the vehicle illegally searched.

166. One month later, December 2008, Munoz was again accused of an improper vehicle stop and search, discourtesy and use of physical force.

167. In March 2009 another individual accused Munoz of discourtesy, abuse, refusing to provide his name and shield, use of force and an illegal stop.

168. Later that same month, Munoz was accused of discourtesy, offensive language, and threatening to issue a false summons.

169. In May 2011 Munoz was again accused of using excessive force.

170. In all there were 32 charges filed with the Civilian Complaint Review Board against Munoz between 2005 and 2014, not including this incident and other charges filed and investigated by the Internal Affairs Bureau.

171. The Internal Affairs Bureau had 18 cases listed against Munoz, one for corruption, five involved civilian complaints, five involved misconduct, and seven were

classified as outside guidelines.

172. Clearly the City was on notice of Munoz' patterns of conduct which involved numerous allegations of illegal stop and search, obscenities, discourtesy, evidence discrepancy, improper use of force, irrational and violent behavior, and emotional instability, yet they not only continued to employ him, provide him with a firearm and other deadly and dangerous weapons, but they assigned him to act in a supervisory category.

173. Upon information and belief Munoz was charged with the responsibility of being Spataro's direct supervisor and providing Spataro's performance evaluation.

174. The City's deliberate indifference to Munoz' conduct was a direct contributing factor and cause of the plaintiff's injuries as stated in this complaint.

175. Spataro, also had numerous prior complaints/investigations made against him with the Internal Affairs Bureau.

176. In March 2010, an allegation of a disputed summons was filed against Spataro.

177. In May 2010 Spataro was cited for providing an incomplete/inaccurate report, violating Dep't rules and failing to notify the Internal Affairs Bureau.

178. Upon information and belief, in October 2010 contraband was found in Spataro's vehicle.

179. Upon information and belief in November 2011 a case involving an evidence discrepancy was filed against Spataro.

180. Numerous cases of disputed arrests were also filed against Spataro: November 2011, February 2012 and April 2012.

181. Upon information and belief complaints of misconduct was filed against Spataro

in August 2012, and acting outside police guidelines was made in June and August 2012.

182. In February 2012 a charge of discourtesy and unnecessary force was also made against Spataro.

183. Upon information and belief additional complaints were made against Spataro at the Civilian Complaint Review Board (CCRB).

184. Upon information and belief a complaint of abuse was made against Spataro with the CCRB in February 2009.

185. Upon information and belief a complaint of discourtesy and force was made against Spataro with the CCRB in June 2013.

186. Clearly the City was on notice of Spataro's patterns of conduct which involved numerous allegations of illegal stop and search discourtesy, evidence discrepancy, improper use of force, misconduct, and acting outside guidelines, yet they not only continued to employ him, provide him with a firearm and other deadly and dangerous weapons, but they assigned him to act in an undercover capacity and be supervised by Munoz, a person who engages in similar egregious conduct.

187. The City's deliberate indifference to Spataro's conduct was a direct contributing factor and cause of the plaintiff's injuries as stated in this complaint.

188. The City's deliberate indifference to the defendant "officers" conduct and actions, which included violations of citizen's right, their failure to report misconduct, inaccurate and unaccounted for evidence, false arrest, false police reports, use of force, use of excessive force, illegal search and seizures, bias, discrimination, tolerance of failing to report misconduct, falsification of evidence etc is evident in their tolerance of the actions of the Brooklyn North

Narcotics Unit of which the defendant officers were members.

189. Upon information and belief that unit was the subject of numerous lawsuits, including many in which Khan was named as a defendant:

a. In *Berrios v City of New York*, 06-cv05459, in which “Khan” is a named defendant, the plaintiff alleged that he was improperly stopped and frisked and subjected to excessive force. He sustained 4 broken ribs and the case settled

b. In *Jones v City of New York*, 09-cv-01088, in which Khan is a named defendant, the plaintiff, an African American male, was walking home, when he was grabbed by officers from the NYPD, slammed to the ground, subjected to excessive force, searched, strip searched and falsely charged with crimes. The case, upon information and belief, is still pending.

c. In *Kendall Walker v City of New York*, 09- civ-5054, in which Khan is a named defendant, the plaintiff was illegally stopped and frisked and falsely charged with a crime he did not commit. The officers falsely claimed that they saw an exchange between Walker and another individual. The plaintiff, an African American male, was acquitted of all criminal charges and the City settled the civil lawsuit.

d. In *Rodderick Ingram v City of New York*, 11civ-02696, in which Khan was a named defendant, officers illegally entered the plaintiff's, an African American male, home where he was assaulted, battered and strip searched. The plaintiff was falsely charged with possession of drugs, which were later dismissed and the civil case was settled.

e. In *Khadiju Stephen v City of New York*, in which Khan was a named defendant, the plaintiff was talking to her brother and a friend when she was grabbed and searched. All criminal charges were dismissed and the civil case is still pending.

f. In *Ralph Sams v The City of New York*, 13-CV-2368, in which Khan was a named defendant, the plaintiff was arrested and his thumb was broken on his dominant hand. The plaintiff was then placed in the back of a vehicle to be transported to the precinct where, upon information and belief, Khan drove erratically which resulted in the exacerbation of the Plaintiffs injuries. The civil case has settled.

g. In *John Spears v The City of New York*, 10-CV-3461, filed in the Eastern District of New York, in which Khan and another officer who is also the subject of numerous lawsuits Daniel Sbarra were named defendants, the plaintiff was lawfully driving in his vehicle when he was pulled over. The plaintiff was dragged out of his car and thrown to the ground. The plaintiff's vehicle was searched and the plaintiff was later searched at the precinct. No contraband was found and the plaintiff was charged with resisting arrest and tampering with evidence. All criminal charges were later dismissed.

h. In *Mark Labrew v The City of New York*, 07-CV-4641, filed in the Southern District of New York, in which Khan and Sbarra were named defendants, the plaintiff was walking home from work and was stopped, frisked, and searched. Plaintiff was then arrested and transported to the precinct where he was strip searched, called derogatory names and statements, and assaulted. All criminal charges were dismissed and the civil case has settled in Labrew's favor.

i. In *David Singleton v The City of New York*, 04-CV-1900, in which Khan was a named defendant, the plaintiff was inside a night club when officers entered and assaulted, battered, sprayed Singleton with mace, and searched him. Throughout the incident the officers

continuously assaulted and battered Singleton. The civil case has settled in Singleton's favor.

j. On May 1, 2008 at approximately 11:30 p.m. Ronald Rose, was lawfully outside when Officer Khan and Sbarra, with other officers, stopped, grabbed, and handcuffed Rose. He was then transported to the 79th precinct where he was strip searched and falsely charged with various crimes. All criminal charges have been dismissed against Rose and he suffered from marks and numbness to his wrists. The civil case has since settled in Rose's favor under Docket 10-CV-3069, filed in the Eastern District of New York

190. Upon information and belief, despite numerous complaints against Khan and numerous lawsuits filed against him in his capacity as a police officer, the City acting with deliberate indifference failed to discipline, retrain and reassign or fire Khan. The deliberate indifference to the need to discipline, monitor, fire, retrain, retest, reassign or modify the officers duties herein was a proximate cause of the injuries that the plaintiff sustained on January 16, 2014.

191. It is alleged herein that the Plaintiff was stopped and searched absent just cause or reasonable suspicion. That said actions were pursuant to an illegal and improper Stop and Frisk program, or policy that was promulgated and enforced by the Defendants and/or their agents, servants and/or employees. That such custom, policy and program has created a class of citizens, including the Plaintiff, who have been illegally stopped and seized, searched and questioned based on their race, and in order to meet arrest or summons quotas or performance incentives or goals. Additional evidence of said policy is as follows:

a. That in a class action lawsuit David Floyd, et al. v. City of New York, Commissioner Raymond Kelly, Mayor Michael Bloomberg et al. pending in United States District Court,

Southern District of New York, 08 CIV 1034, in a decision filed May 16, 2012 certifying a class action lawsuit, it found that between the years 2004 and 2009 a reported 2.8 million people have been stopped and frisked. Of that number more than 87% were minority citizens. Summons or arrests were issued or made in approximately ten percent of the reported stops. Meaning that based on their NYPD records, their suspicions are incorrect nearly 9 out of 10 stops.

b. Justice Scheindlin found in the Floyd decision, that:

- i. It is indisputable that the NYPD has an enormous Stop and Frisk program
- ii. Evidence shows that the Stop and Frisk program is organized and hierarchical
- iii. The Stop and Frisk program has been designed and revised at the highest levels of the Department
- iv. The implementation of the program is conducted according to uniform and centralized rules
- v. Monitoring of the program is hierarchical
- vi. The program is the result of institutional decisions and directives

c. Justice Sheindlin further found that a preponderance of evidence shows that NYPD policy of establishing performance standards and demanding increased levels of stop and frisks results in putative class of aggrieved citizens. The court noted that street level stops have risen every year. That in 2004, Officers documented 313,000 stops, and in 2011 they reported 684,000 stops. In a Police Officer Performance Objectives Operation Order dated October 17, 2011, Commissioner Kelly directed that “Department managers can and must set performance goals – relating to “the issuance of summons, the stopping and questioning of suspicious

individuals and the arrests of criminals”. It further states that “uniformed members who do not demonstrate activities...or who fail to engage in proactive activities...will be evaluated accordingly and their assignments reassessed.”

d. Judge Scheinlin later ruled that the stop and frisk program of NYC unconstitutionally discriminated against minorities. Her rulings with respect to the unconstitutional policy and application by New York City Police Officers was appealed by the City, but upheld in which the Appellate Court refused to toss out the court’s ruling finding that New York City carried out its stop and frisk program in an unconstitutional manner.

192. Upon information and belief said policy, custom and/or objectives were still in effect in January 2014, or to the extent that they were not explicitly in effect they were implicitly in effect through the City’s deliberate indifference to the continuing practice of illegal stop and frisk, and questioning citizens based upon their race, including but not limited to officers failing to fill out required stop, question and frisk reports and going unpunished in their failure to do so.

193. Upon information and belief the defendants did not prepare a stop question and frisk form with regard to Lacey Berry, despite being required to do so, and upon information and belief did not receive any punishment with respect to said deliberate omission.

194. That said deliberate indifference to the practices of New York City Police Officers including the named defendant officers, lead to a culture within the New York City Police Department that resulted in the illegal stop and search of the plaintiff, the use of force against the plaintiff, the conspiracy to hide or destroy and/or falsify evidence, filing false reports, omitting required reports, failing to secure prompt necessary medical attention, threats, vulgarity and discrimination.

195. That the failure to discipline, punish, investigate, reassign, fire, retrain, test gave officers tacit approval that their conduct was either condoned or would go unpunished. That fact that officers who engaged in said conduct were promoted only provided further evidence to their underlings that there was a code of silence, or “brotherhood of blue”, and that transgressions should not be reported or the reporter would be deemed a persona non grata, or worse a “rat”.

196. Further pressure upon officers was threat by and through quota or performance objectives. Upon information and belief the NYPD, and/or City established performance standards which demanded, or resulted in increased levels of stops and frisks, resulting in the improper stop and frisk and later search of the plaintiff

197. This policy which, upon information and belief was in existence on January 16, 2014 was codified in a 10/17/11 Police Officer Performance Objectives Operation Order. In that Order Commissioner Kelly directed all commands that “Department managers can and must set performance goals” relating to the “issuance of summons, the stopping and questioning of suspicious individuals, and the arrests of criminals”.

198. The same Operation Order stated “uniformed members.... Who do not demonstrate activities... or who fail to engage in proactive activities... will be evaluated accordingly and their assignments re-assessed”.

199. In the case of *Floyd v City of New York*, Justice Scheindlin cited evidence of a quota system which included a minimum number of monthly “stops”. Said evidence includes:

a. the deposition of Inspector Dwayne Montgomery, Commander of the 28th pct, who testified that he expected his officers to conduct a minimum of 2.3 stop and frisk per month and used that number “as a way of just gauging whether or not they were doing their job” Floyd

at 20.

b. Police Officer Adhyl Polanco of the 41st pct testified that his commanding officers announced specific quotas for arrests and summons. He further testified that officers were threatened with reduced overtime or reassigned for failure to meet quotas.

c. Police Officer Adrian Schoolcraft recorded roll calls at the 81st pct where supervisors were yelling and instructing officers to conduct unlawful stop and arrests to meet higher performance numbers. This order was coming down “the chain of command”. These statements were made by Lieutenant Delafuents, Deputy Inspector Mauriello, and Sergeant Stukes and cites the instructions of Chief of Transportation Michael Scagnelli.

d. Police Officer Luis Pichardo of the 28th pct offered testimony that his supervisors imposed a five summons per tour quota.

200. Furthermore, upon information and belief the City has improperly taught or trained officers in the application of the 4th Amendment with respect to stop and frisk policies and procedures. In a recent decision by Judge Shira Scheindlin, she ruled in a related case, *Ligon v. The City of New York*, that the NYPD has systematically crossed the line when making trespass stops outside TAP (trespass affidavit program) buildings in the Bronx.

201. In reviewing the evidence in the *Ligon* case, Justice Scheinlin reached the conclusion that “the NYPD’s inaccurate training has taught officers the following lesson: stop and question first, develop reasonable suspicion later”.

202 We submit, as set forth herein, that this same training and modus operandi was in effect and followed on the morning of January 16, 2014, leading to the seizure and brutal assault and batter of Drew Parker by the named defendant officers while they were acting in the scope of

their employment.

203. Upon information and belief the City's deliberate indifference to the unconstitutional practices of its employees, and in particular the named defendant officers, and the need for review and reformation was a contributing proximate cause of the plaintiff's injuries

204. That said deliberate indifference to the need to:

- a. train officers in search and seizure laws, stop and inquire, probable cause, use of force, and duty to intervene and report,
- b. to grade and test to see if officers mastered legal and tactical concepts
- c. to ensure that each officer reads and understands legal bulletins provided
- d. to provide officers with situational training for use of force
- e. properly discipline officers who fail to follow police and administrative guidelines,
- f. analyze disparities of application of stop, frisks, and use of force as applied between whites and minorities,
- g. to analyze stop and frisk data in the context of arrests that were dismissed, summons dismissed,
- h. to analyze stop and frisk data in the context of use of force/reasons for the use of force/ and whether the charges for which the force was used, i.e resisting arrest or assault of a police officer were sustained.
- i. track, discipline, monitor, retrain and reassign officers who have questionable stop and frisk practices, use of force complaints, complaints of witness intimidation, providing false statements, among other violations, as reported by number of citizen complaints,

notices of claim, lawsuits and/or dismissals of their arrests and summons and complaints of fellow officers, including data contained in unsubstantiated CCRB or IAB investigations

- j. to retest officers knowledge of patrol guidelines when they are out of the academy
- k. to provide situational simulations and to grade the officers performance, and not pass the officer until he or she has demonstrated adequate proficiency
- l. to discipline officers who fail to report non-compliant officers or who engage in a conspiracy of silence
- m. report all referrals for psychological counseling, and change the officers assignment if required or necessary.
- n. analyze the use of force, and the amount of force used in proportion to the charges alleged and what if any injury was sustained by the officer
- o. reassign officers who have a high number of complaints, lawsuits and/or investigations against them
- p. hold on scene supervisors responsible for the enforcement of New York City Patrol Guidelines,
- q. to hold officers responsible for failing to fill out stop and frisk reports
- s. to discipline officers who order witnesses to stop photographing or videotaping their conduct; caused or substantially contributed to the events of January 16, 2014.

205. Upon information and belief the City was aware that the NYPD customs, policies and procedures, as well as their deliberate indifference to the unconstitutional applications of their customs, policies and procedures, and need for reformation of its training, oversight,

analysis, supervision, monitoring, disciplining and review would lead to constitutional violations of its citizenry, and did lead to said violations of the plaintiff's constitutional rights on January 16, 2014. Some examples follow:

a. In the case of *Ligon v. City of New York, Raymond W. Kelly et al.* Justice Scheindlin's Opinion and Order filed 1/8/13, noted that the police training in laws of search and seizure are wrong. She cites as an example of inadequate training a Police Training Video (no. 5) which she stated incorrectly advised police officers what constituted a "stop", and whether force, or the threat of force must accompany the police action to constitute a "stop".

b. In *Ligon*, Justice Scheindlin found fault in the police training video which made incorrect distinctions between "stops" and "arrests". In her decision she writes "By incorrectly implying that the encounters lacking the characteristics of a *arrest* are in fact not even *stops*, the video appears to train officers that they do not need reasonable suspicion to perform the kinds of stops that an accurate reading of the law would be classified as Terry stops. In other words, this video,trains officers that it is acceptable to perform stops.... or possibly even arrests, without reasonable suspicion", pages 126,127

c. Justice Scheindlin further found that "the evidence of numerous unlawful stops at the hearing strengthens the conclusion that the NYPD's inaccurate training has taught officers the following lessons: stop and question first, develop reasonable suspicion later" *Ligon* at 131.

206. Upon information and belief the City was aware of, or should have been aware of

the widespread instances of: racial bias or profiling; an illegal and/or improper stop and frisk program, custom, practices or policy; the application of and tolerance of excessive use of force; police cover-ups which include filing false charges and intimidating witnesses to said misconduct; destruction of exculpatory evidence; failing to intervene, mitigate and report, discriminatory conduct and warrantless entry into citizen's homes, yet acted with deliberate indifference thereto. Some examples of their knowledge are:

a. On November 11, 2007 at 3 a.m. Antoine Parsley, an African American male, was walking in the vicinity of 123rd Street and 2nd Avenue in New York, when he observed officers from the 25th precinct chasing two unknown individuals. One of the Officers came up to Parsley and grabbed him, punched him in the mouth, and handcuffed him while being surrounded by other Officers. Parsley was never informed as to why he was being arrested and when he inquired he was told to "shut the fuck up." Parsley was transported to the precinct, searched, and stripped of all his belongings. When Parsley's cousin came into the precinct to check on him, he too was arrested and put in the same holding cell. Officers later came into the holding cell, held Parsley down on a bench, and punched him repeatedly. They proceeded to choke him while he was handcuffed to the bench. Parsley was falsely charged with obstruction of governmental administration, which was later dismissed. The case has settled in Mr. Parsley's favor under Index No.: 115906/07 with the Supreme Court, New York County. Upon information and belief no investigation or disciplinary action was taken against the police officers. Not one officer present at the scene interceded or later reported the misconduct.

b. On October 2, 2010, Darin Montague, an African American male, was lawfully

crossing a street when Officers from the 52nd precinct approached him and asked if he had any drugs on him. The Officers proceeded to frisk Mr. Montague, and despite not finding any contraband, they handcuffed and arrested him. Later at the precinct they made him strip naked of all clothing, bend over and cough. He was illegally detained and imprisoned for hours, without filing any charges against him. Upon information and belief no investigation or disciplinary action was taken against the police officers despite the fact that the civil case was settled in favor of Mr. Montague under Index No.: 308319/2011 within the Supreme Court, Bronx County. Not one officer present at the scene interceded or later reported the misconduct.

c. On November 28, 2010 at 1:30 a.m. Amin Torres was exiting his friend's apartment located at 1304 Merriam Avenue in the Bronx, when an Officer from the 44th precinct ordered him to stop and get against a wall. The Officer began to search him without just or probable cause. Upon searching Torres, the Officer found a small, but legal knife. He forcefully pushed Torres against the wall, handcuffed him, and threw him to the ground. Torres was taken to the precinct, continuously called derogatory names and was searched a second time. He was falsely charged with possession of a weapon in the fourth degree. The charge was later dismissed. Candida Stark, the person whose home Torres was visiting, witnessed and objected to the police treatment of Torres. She was assaulted by the police, threatened, and pushed back inside her building. Stark suffered multiple contusions to the face and leg, and severe pain to the right eye. Upon information and belief no investigation or disciplinary action was taken against the police officers, despite the fact that the criminal and civil cases were settled in favor of Torres

and Stark under Index No.: 307674-2011 within the Supreme Court, Bronx County. Not one officer present at the scene interceded or later reported the misconduct.

d. On July 9, 2008 at 10:15 p.m. June and Bridgett Pressley, two young African American females, were at their residence when Officers of the 81st precinct approached June. They asked her for identification without having any justifiable reason for doing so. June went inside the apartment to retrieve her ID. The Officer, without a warrant, and without probable cause or reasonable suspicion, forcibly entered the apartment behind her. June was pushed and thrown about the apartment and into her television. While on the floor, she was repeatedly struck with a nightstick. The Officers struck her sister Bridgett who was pregnant at the time. Both individuals were falsely charged with obstructing governmental administration, resisting arrest, disorderly conduct, and harassment, which were later dismissed. Although numerous officers were present not one interceded or reported the misconduct. The civil lawsuit was settled in the Pressley's favor under Index No.: 16500/2009 within the Supreme Court, Kings County. Upon information and belief no investigation or disciplinary action was taken against the police officers. Not one officer present at the scene interceded or later reported the misconduct.

e. On August 3, 2007 at 1 a.m. Maquan Moore, a young African American male, was stopped without just or probable cause by Officers from the 25th precinct. He was grabbed, pulled off his bicycle, thrown against one of the unmarked cars, searched, and placed in handcuffs. While being searched, Officers pulled down his pants, shined a flashlight in the front and back of his boxers, while to bend over so the Officer could look down the back of his boxers, all outside in the presence of Maquan's friends. The

Officers threatened Maquan repeatedly, dragged him, and threw him in the back of the unmarked car and slammed the door on his leg. An Officer made Maquan submit to a strip search again at the precinct and then dropped Maquan back at the scene without pressing charges against him. Upon information and belief no investigation or disciplinary action was taken against the police officers. Not one officer present at the scene interceded or later reported the misconduct. A civil case against the City of New York was settled on Mr. Moore's behalf under Index No.: 105663-08 within the Supreme Court, New York County.

f. On September 27, 2007 at 11 p.m. David Franklin, a young African American male, was walking home from night classes when he was stopped and illegally searched without just or probable cause. Officers from the 47th precinct forcefully twisted his arm behind his back, forced him to the ground, struck Franklin, and placed a knee in his back. Franklin was handcuffed, arrested, imprisoned, and falsely charged with Disorderly Conduct which was later dismissed. Upon information and belief no investigation or disciplinary action was taken against the police officers, including supervisors, despite the fact that the civil case against the City of New York et al. settled in favor of Mr. Franklin under Index No. 307173/2008 within the Supreme Court, Bronx County. Not one officer present at the scene interceded or later reported the misconduct.

g. On January 5, 2010 at 8 p.m. Ilan Gomez, Eduardo Rivera, Jonathan Baez, and Javier Tavaréz, were all in the vicinity outside 2473 Davidson Avenue, in the Bronx when an undercover Officer from the 52nd precinct came up to them and asked if they knew where to buy some weed. Baez told the undercover to go away. A few minutes

later, an unmarked police van pulled up on the street and Officers ordered Baez, Gomez, Rivera, and Tavaréz to get on the ground.

At the same time, Louis Miranda was returning to his father's and uncle's home. Police Officers, absent probable cause or reasonable suspicion, chased Miranda and attempted to break down the door of the home. The Police pulled open the door and shot Jamie and Hector Miranda's pit bull. They grabbed Louis, Hector, and Jamie Miranda and beat them up, taking Hector and Jamie into the street in their underwear. Officers slammed Gomez into the sidewalk; Tavaréz was kicked, had a knee placed in his back, and assaulted on the sidewalk; Baez was punched in the face numerous times, slammed into the sidewalk numerous times, struck about the body, and had his foot and ankle stepped on. The brutality was caught on video. Supervisors were present and failed to take any action. No disciplinary report was filed by any supervisors present, and not one officer intervened to stop the abuse from happening. Instead the Officers conspired to file false police reports and false criminal charges against all individuals which were later dismissed. Two Officers were later arrested, prosecuted, and upon information and belief convicted, and two Sergeants suspended only after evidence of the video came out. However, upon information and belief no investigation or disciplinary action was taken against the numerous other police officers present. The civil case against the City of New York et al. was settled in favor of the plaintiffs, who were all Latino males, under Index No.: 310327/2010 within the Supreme Court, Bronx County.

h. On January 20, 2010 at 6 p.m. Justin Hawkins, Desmond Ingram, and Akeem Huggins, each young African American males, were lawfully walking down a street, a

few blocks from their homes in Staten Island, when Officers from the 120th precinct approached and grabbed Justin and pushed him into a nearby gate. Justin was searched without reasonable suspicion, thrown to the ground, hit with a cellphone, handcuffed and transported to the precinct. Desmond was pushed into a nearby gate, thrown onto the hood of a car, punched in the face, struck with police equipment, punched multiple times while handcuffed, stepped on and kicked repeatedly in the face. Scott Hawkins, Justin's father, heard that there was an incident regarding his son, so he stepped outside to obtain information from the Officers. He was assaulted, in that he was jumped from behind, maced, choked to the floor, kicked, kneed, struck with a baton, and arrested. Desmond and Akeem were falsely charged with harassment, felony assault, resisting arrest, and disorderly conduct. Justin and Scott were falsely charged with harassment, petty larceny, possession of stolen property, felony assault, and disorderly conduct. All criminal charges were dismissed against all individuals. They all sustained physical injuries at the hands of the police. Despite the need for immediate medical attention, it was not provided.

Although many officers, including police supervisors, were present during the assault, not one officer interceded or reported it and, upon information and belief there was no meaningful investigation undertaken by the police department into the misconduct and no officers faced any disciplinary charges, despite the fact that the criminal charges were dismissed and the civil case against the City of New York et al settled in favor of the individuals under Docket No.: 10-CV-05883 in the Eastern District of New York.

i. On August 13, 2008 at 1 p.m., Robert Melendez, a male Latino, was at his car which was parked on the corner of Lafayette Avenue and Rosedale Avenue, in the

Bronx, when he observed Officers from the 41st precinct forcefully arresting an unknown man. Melendez needed to leave for work, but couldn't because the Officers were searching the gentlemen's property on the trunk of his car. Melendez told the Officers that he was a bus operator and needed to leave. One of the Officers became annoyed, and accused Melendez of "smoking" and the other Officer ordered Melendez to be arrested. Melendez sat handcuffed in a police van for more than two hours, was held overnight, falsely charged with criminal possession of marijuana and unlawful possession of marijuana. Both charges were dismissed on October 21, 2008. Upon information and belief no investigation or disciplinary action was taken against the police officers despite the fact that the criminal charges were dismissed and the civil case against the City of New York et al., was settled in favor of Melendez under Index No. 310033/2008 within the Supreme Court, Bronx County.

j. On February 6, 2010 at 10:30 p.m. Daniel Perez, a young male Latino, was lawfully a guest in the lobby of building at 365 Fountain Avenue, in Brooklyn, New York, when two officers from the 75th precinct entered the building and proceeded to chase Daniel without just cause or reasonable suspicion. As Daniel exited the building, one Officer tackled him to the ground, slammed his head onto the cement sidewalk, handcuffed him, and when Daniel was picked up, the second officer kned him in the ribs, making Daniel fall to the ground a second time. The Officers threatened him and called Daniel derogatory names. He was transported to and searched at the precinct, despite his obvious need for immediate medical attention.. Daniel was falsely charged with criminal trespass in the third degree, which was later dismissed. He sustained

multiple fractures to the face. Upon information and belief no disciplinary action was taken against the police officers.

k. On August 7, 2010 at 2:30 p.m. Lorraine Sinclair, a young African American woman, was stopped by two Officers of the 41st precinct as they drove by in their patrol car. When she provided her I.D. the Officers claimed that Lorraine had an open warrant, proceeded to get out of the vehicle, grab Lorraine, pushed her to the ground, slammed her face into the floor, knocked her unconscious, and handcuffed her. Lorraine was falsely charged with resisting arrest, harassment, and criminal mischief. All charges against her were later dismissed. Sinclair suffered from deep lacerations to the back and shoulder which resulted in scarring and deep bruising. Although many officers were present during the assault, not one reported it and, upon information and belief there was no meaningful investigation undertaken by the police department into the misconduct and no officers faced any disciplinary charges despite the fact that the criminal charges were dismissed and the civil lawsuit against the City of New York et al., was settled in favor of Sinclair under Index No.: 306755/2011 within the Supreme Court, Bronx County.

l. On February 15, 2009 at 6:45 p.m. Eliet Harrell, an African American Male, was a passenger in a vehicle which was lawfully parked in the vicinity of 818 Home Street, in the Bronx, when Officers of the 42nd precinct walked up to the car and inquired if any of the occupants in the car knew someone named "Tony." Upon reply, the Officers ordered everyone to step out of the vehicle and the car was searched. As Mr. Harrell was told to go to the back of the car, along with two other individuals, an Officer began to use abusive language towards everyone who was in the car. Mr. Harrell was frisked,

handcuffed, punched in the face, grabbed and tripped, struck continuously on the ground by multiple officers, including a police sergeant, with fists, feet, batons, and radios. Mr. Harrell was falsely charged with felony assault, misdemeanor assault, resisting arrest, obstruction of governmental administration, criminal possession of marijuana, unlawful possession of marijuana, harassment, and disorderly conduct. Mr. Harrell was denied prompt and necessary medical attention. He was found not guilty of all charges at trial. Harrell sustained multiple fractures and spinal injury due to the assault. Although many officers were present during the assault, including a Sergeant, not one intervened or reported it and, upon information and belief there was no meaningful investigation undertaken by the police department into the misconduct and no officers faced any disciplinary charges. The civil case against the City of New York et al. was settled in favor of the plaintiff under Index No.: 301115/2010 within the Supreme Court, Bronx County..

m. On January 17, 2008 at 9:05 p.m. Vasaan Burris, a young African American male, was lawfully walking on 42nd Street in New York County when Officers of the 14th precinct tackled him from behind, knocked him to the ground, put a knee in his back, and handcuffed him. Burris was brought to a nearby vestibule where he was thrown against a wall, searched and taken to the precinct. The Officers ordered Burris to remove all his clothing and he was searched a second time, including a cavity search, and was released without having any knowledge as to why he was arrested. He was not charged with any crime. Upon information and belief no investigation or disciplinary action was taken against the police officers. A civil lawsuit against the City of New York et al., was settled

in Burris' favor under Index No.: 106536/2008 within the Supreme Court, New York County.

n. On October 31, 2008 at 11:00 p.m. Tony Montague, an African American male, was lawfully in the vicinity of 750 Astor Avenue, in the Bronx when an Officer of the 49th precinct, absent a warrant, just or probable cause to stop, seize and search, grabbed Tony from behind. Montague was struck with a baton/asp, punched, and kicked by multiple officers without just or probable cause. He was handcuffed, and continuously struck and maced while handcuffed. When Michael Montague, the father of Tony, pleaded with the Officers to get medical attention for his son, he too was arrested and taken to the 49th precinct; Tony being falsely charged with attempted assault, resisting arrest, obstruction of governmental administration, and harassment and Michael was falsely charged with obstruction of governmental administration. All charges were dismissed against Michael Montague. Tony Montague was found not guilty of all charges at trial. Although many officers were present during the assault, not one reported it and, upon information and belief there was no meaningful investigation undertaken by the police department into the misconduct and no officers faced any disciplinary charges. The civil lawsuit against the City of New York et al., was settled in favor of Tony and Michael Montague under Index No.: 308346/2009 within the Supreme Court, Bronx County.

o. On December 9, 2009 at 12:15 p.m. Jerrell Wiggins, a young African American male, was lawfully outside his residence located at 2130 Madison Avenue, in New York County when two Officers of the 32nd precinct approached Jerrell, ordered him not to

move, to “shut up” and to “place his hands the gate”. Jerell was searched. Not finding anything, the Officers let him go, however, as Jerell attempted to walk away one Officer grabbed the collar of his jacket, preventing Jerell from leaving. He was thrown to the ground and continuously punched in the face and eye. Jerell was transported to the precinct where he was ordered to remove all clothing and a visual strip search was performed. While asking for medical attention, Jerell was told to “shut up” and threatened if he continued to ask that his paperwork would be pushed to the bottom to insure he stayed within the precinct for the maximum time allotted. Jerell was falsely charged with possession of marijuana, and resisting arrest. All charges were later dismissed. He sustained facial fracture(s). Upon information and belief no investigation or disciplinary action was taken against the police officers, including upon information and belief a Sergeant, despite the fact that the criminal charges were dismissed and the civil lawsuit against the City of New York et al., settled in favor of the plaintiff under Index No.: 112205/2010 within the Supreme Court, New York County.

p. On July 1, 2008 at 1 p.m., Nathan Dixon, an African American male, was lawfully outside of 220 West 141st Street in New York County, when officers from the 32nd precinct approached him, ordered him to stop, and searched Nathan without just or probable cause. While searching Nathan, the officers ran his license and falsely claimed that he had an open warrant. Nathan was arrested and taken to the precinct. At the precinct, Nathan was repeatedly searched. An officer made Nathan strip down and a cavity search was conducted. Nathan was falsely charged with Disorderly Conduct, which was later dismissed. Upon information and belief no investigation or disciplinary

action was taken against the police officers, despite the fact that the Civil lawsuit against the City of new York et al., settled in favor of Mr. Dixon under Index No.: 109401/2009 within the Supreme Court, New York County.

q. On June 16, 2007 at 9:30 p.m. Arthur Thomas, an African American male, was in the vicinity of 2507 Seventh Avenue, in New York County, walking to his wife's salon. Officers from the 32nd precinct stopped Mr. Thomas and asked him if he was drinking alcohol. Mr. Thomas showed him his soda can, which he was carrying in a brown paper bag. Officers allowed Mr. Thomas to continue on his way. However, as Mr. Thomas continued to walk toward his destination, Officers ran after him, grabbed Mr. Thomas from behind, shoved him into a door frame and the counter inside his wife's salon. Mr. Thomas was forcibly lead outside in handcuffs and was humiliated in front of his wife and friends. Mr. Thomas was falsely charged with Disorderly Conduct and Failure to Comply. All charges were ultimately dismissed. Upon information and belief no investigation or disciplinary action was taken against the police officers. The Civil lawsuit against the City of New York et al. was settled in favor of Mr. Thomas under Docket No.: 09-CV-6540, within the Southern District Of New York.

r. On November 13, 2010 at 2:15 a.m. Michael Nelson, a young African American male, was legally outside in the vicinity of 1609 East 174th Street, in the Bronx, when two Officers from PSA8 grabbed Nelson and ordered him up against a nearby gate. When Nelson asked what he was being arrested for, said Officers threw him down on the ground, placed a knee in his back, kicked him, and struck him about the body. Shaina Johnson, a young African American female, tried to take photos of the police misconduct.

In response thereto, unknown Officers rushed Johnson, pushed her down, slammed her into a telephone booth, and slammed her into the back of a car. Johnson was falsely charged with resisting arrest, obstruction of governmental administration, and disorderly conduct. Nelson was falsely charged with disorderly conduct and resisting arrest. All criminal charges against Nelson and Johnson have been dismissed. Although many officers were present during the assault, not one reported it and, upon information and belief there was no meaningful investigation undertaken by the police department into the misconduct and no officers faced any disciplinary charges. Nelson's eye was fractured due to the savagery of the police misconduct. The civil lawsuit was settled in favor of Nelson and Johnson under Index No.: 310036/2011 within the Supreme Court, Bronx County.

s. On August 22, 2010 at 3:45 a.m. Matthew Dillard, an African American Male, was legally walking down 42nd Street, between 7th and 8th Avenues with his brother, Marc Dillard, when Officers from the 14th precinct, stopped and began to mace Marc. As Matthew questioned as to why Marc was being maced, other Officers maced, struck with a baton, and smashed Matthew's head to the ground, and continued to strike and kick him on the floor. Matthew was falsely charged with resisting arrest, obstructing governmental administration, and felony assault which were later dismissed. Upon information and belief no investigation or disciplinary action was taken against the police officers despite the fact that supervisors from NYPD were present and the civil case against the City of New York et al., settled in favor of Mr. Dillard under Index No.: 109075/2011 within the Supreme Court, New York County.

t. On July 5, 2009 at 9 p.m. Tameeka Manning, a young African American female, was lawfully inside the 77th precinct in Brooklyn to make a complaint about a police brutality incident which she had witnessed. The Desk Sergeant was rude and uncooperative. Upon reaching for her bag to leave the precinct, the Sergeant grabbed her, pushed her backwards, and ordered other officers to “take her down.” Mrs. Manning was handcuffed and punched in the face twice. She was called derogatory names. Manning was falsely charged with resisting arrest and criminal mischief. All charges were dismissed at trial. Manning suffered subconjunctival hemorrhage of the left eye, physical scarring about the body, and multiple knots to the head. She did not receive prompt and necessary medical attention. Upon information and belief no investigation or disciplinary action was taken against the police officers. The civil lawsuit against the City of New York et al., was settled in her favor under Index No.: 13485/2010 within the Supreme Court, Kings County.

u. On April 25, 2008 at 9:50 p.m. Robert Medine, a young African American male, was lawfully walking home on Arthur Avenue in the Bronx, when access to his block was denied by Officers of the 48th precinct. Medine tried to explain that his residence was in the immediate area and the Officers pushed him into a nearby gate, tripped him, and assaulted him with their fists, feet and nightsticks. He was handcuffed, and transported to the precinct. Once inside the 48th precinct, Officers brought Medine into a bathroom and slammed his face into a wall multiple times before returning him to his holding cell. He was falsely charged with assaulting a police officer, assault in the third degree, resisting arrest, obstruction of governmental administration, and harassment. After undergoing the

emotional stress of a trial, Medine was found not guilty of all charges. Medine suffered from intracranial injury, deep and extreme bruising, a disfigured face due to the open wounds and scrapes, decreased range of motion of his neck, and chronic weakness in his ankle. Although many officers were present during the assault, not one reported it and, upon information and belief there was no meaningful investigation undertaken by the police department into the misconduct and no officers faced any disciplinary charges. Medine was denied prompt and necessary medical attention. The civil lawsuit against the City of New York et al., was settled in his favor under Index No.: 301867/2009 within the Supreme Court, Bronx County.

v. On March 2, 2009 James Barker, a minor African American male, was walking home. Police, absent reasonable suspicion ran after him, and despite lacking probable cause to believe that a crime had been committed by him, they forcibly broke into the house without a warrant or exigent circumstances. Once inside numerous police officers proceeded to assault the occupants of the home, who had come out of their rooms to see what was going on. Leander Barker, James Barker, Odessa Paul, Donette Ritchie, Shanelka Barker, Sean Colbourne, Sean Barker, were each falsely arrested and transported to the 46th pct.. Joseph Barker, the elderly bedridden grandfather was maced in the eyes. All were falsely charged with various forms of obstructing governmental administration, resisting arrest, assault, menacing and/or harassment. All criminal charges against all the aforementioned individuals were dismissed. Not one officer interceded to stop the police misconduct. Not one officer reported the misconduct. Upon information and belief the NYPD failed to investigate the incident, or did not conduct a meaningful

investigation and no officer was disciplined for said blatant disregard to this family's constitutional rights. The civil lawsuit against the City of New York et al., was settled in their favor under Index No.: 305002/2010 within the Supreme Court, Bronx County.

w. On or about June 7, 2010 at approximately 1:20 p.m. there was police activity outside the apartment at 1479 McCombs Avenue in the Bronx. The incident caused Ciara Smith to open the door to see what was going on. Police Officers grabbed Ms. Smith, forcibly pulled her from the home, and entered the premises with guns drawn and without a warrant. The police pointed guns at the babysitter who was inside the apartment holding the baby. They searched the apartment, and when objected to by Ms. Smith, the babysitter and Giselle Smith who subsequently arrived at the location, they were each assaulted and arrested. All criminal charges were dismissed. Upon information and belief the NYPD failed to investigate the incident, or did not conduct a meaningful investigation and no officer was disciplined for said blatant disregard to this family's constitutional rights by police officers and their commanding officers. The civil lawsuit is still pending.

x On or about April 19, 2009 at approximately 3:30 a.m., Jose Lara, a Latino male, was walking down the street when Officers from the 34th precinct "close lined" him knocking him to the ground. Said officers proceeded to strike, kick, knee and step on Lara. Lara was handcuffed and taken to the precinct where he was held for six (6) hours before medical attention was given to him. Lara suffered from an open toe fracture and was falsely charged for committing no crime. All criminal charges were dismissed and the civil case settled in Mr. Lara's favor under Index No. 103608/2010, New York County, Supreme Court.

y On or about November 6, 2010 at approximately 2:00 a.m., Jermel Palmer, an African American male, was inside the lobby of his building where he resided, as Sgt. Lubrano and his partner approached Palmer, requesting his identification. Sgt. Lubrano and his partner were in civilian cloths and failed to identify themselves as officers to Palmer. Sgt. Lubrano then began to search Palmer and threaten him. Nothing was found on Palmer as he attempted to return to his apartment. Officer Lubrano placed his foot in the elevator, stopping the doors from closing, pulled Palmer out and punched him in the face. Palmer was grabbed by Lubrano and his partner in the lobby as he was punched, spit on, thrown against a wall, and continued to be punched. Palmer then had his legs pulled out from underneath him which caused him to fall to the floor. An officer put his foot and knee on Palmer's face and his hands were violently pulled back and handcuffed. Palmer was continuously punched while handcuffed and lifted off the floor as he was removed from the building and slammed on the hood of the patrol car. Palmer was threatened numerous times with acts of violence from Lubrano and other officers while in transit to the precinct and at the precinct. Lubrano put Palmer into a separate room at the precinct and threatened him with a tazer gun, forcing Palmer to write a false statement. Palmer was falsely charged with crimes that he did not commit, however, all criminal charges were dismissed and the civil case against Lubrano, The City of New York et al., which settled in Mr. Palmer's favor under Index No. 109674/2011 in the Supreme Court, New York County. No meaningful investigation of the officers' conduct was ever conducted.

z On or about January 31, 2010 at approximately 8:00 p.m., Jason Hennig was in

police custody, nevertheless, Hennig was tackled to the ground by an officer, who proceeded to strike him repeatedly, threatened him, and spit at him. Not one officer interceded or reported the excessive and/or unlawful use of force. Hennig was transported to the precinct where he was held for hours until being transported to the Hospital. He was later diagnosed with a fractured nose and orbital bone. Hennig was charged with crimes he did not commit, however, his charges were dismissed after receiving an ACD. The civil case has settled in Mr. Hennigs' favor under Index N. 22835/2010, within the Supreme Court, Kings County. No meaningful investigation of the officers' conduct was ever conducted.

aa On or about July 20, 2008 at approximately 10:50 a.m. inside the 40th precinct in the Bronx, Lisa Garcia, a Latino female, entered to make an additional complaint against an individual with whom she had been receiving threatening and harassing phone calls from. When Garcia played the message for the Desk Sergeant, he directed her to the Detective Unit in the precinct. Garcia followed the instructions and was yelled at by Detective Allison, and ordered back to the front of the precinct to wait. Additional officers spoke to Garcia and when they instructed her that they could not help, they suggested she go back to the previous department and request to see a supervisor. Garcia followed instructions again only to be yelled at and pushed, shoved down a flight of stairs and towards the front door by Detective Allison. When Garcia asked if Allison was going to hit her, he swung Garcia around, handcuffed her, and forcefully dragged her back inside the precinct and up the flight of stairs to be put in a holding cell. The incident took place inside a precinct where other officers were present and witnessed the assault

and excessive actions against Garcia, yet no one intervened or reported it. Garcia was falsely charged with committing crimes which she did not commit. Garcia suffered nerve damage in her wrist from Allison's actions. All criminal charges were dismissed against Garcia after trial and the civil case against the City of New York et al., has settled in Ms. Garcia's favor under Index no. 305573/2009 within the Supreme Court, Bronx County. Upon information and belief no meaningful investigation was conducted by the NYPD and no officers were disciplined.

Detective Allison has had numerous cases filed against him for the same kind of excessive actions against various individuals. Said suits include Detective Allison illegally entering individuals homes, using excessive force while individuals are handcuffed, stopping individuals with no probable cause, filling false police reports, filing false charges against individuals, and providing false and inaccurate testimony as to injuries and incidents. Yet despite the multiple law suits naming him, he is still an employee of the NYPD, and allowed to continue his obscene actions.

bb On or about September 1, 2007 at approximately 11:50 p.m., Audrey Brown, an African American female, was witnessing a different incident of police misconduct, in Kings County, down the street from her friend's home as an individual who was standing next to her, voiced his disapproval of what the officers were doing. As Brown and others began walking away, Brown was grabbed and pushed against a nearby wall. She was then struck multiple times by a stick or baton, handcuffed, and taken to the 71st precinct. Brown suffered from lacerations to the forehead, headaches and pain to the head due to the misconduct of the officers including a police sergeant who failed to intervene,

document, and report the misconduct. Brown was also charged with crimes that she did not commit. The civil case against the City of New York et al., has since settled in Ms. Brown's favor under Index No.: 31721/2008 within the Supreme Court, Kings County. All criminal charges have been dismissed. Nevertheless, not one officer present had been disciplined.

cc On February 16, 2009 at approximately 7:00 p.m. William Jones, an African American male, was grabbed at gunpoint, handcuffed, and had his head struck against the trunk of an Officer's vehicle without any warning or notice, within Bronx County. Jones was transported to the Precinct where his head was then slammed into the front desk twice as soon as he arrived. From there, he was taken to a holding cell, when inside, the escorting officer slammed his head against the metal bars. Jones was falsely charged as fitting the description of a robbery suspect and that he had refused to comply with a lawful order to stop, when no such order was given. All criminal charges against Jones have been dismissed and the civil case against the City of New York et al., has settled in Mr. Jones' favor under Index 308365/2009 within the Supreme Court, Bronx County. Upon information and belief, not one officer present, including supervisors received any discipline.

dd On or about April 28, 2010 at approximately 5:30 a.m., both Mark Cummins and David Pardo, both African American males, were sleeping in their apartment, in the Bronx, when their bedroom doors were kicked open by NYPD officers. Cummins was struck in the head with a gun and Pardo was struck while lying in bed. Both men were dragged down to the floor and struck repeatedly, lifted off the floor and handcuffed.

Upon information and belief, multiple officers and supervisory personnel were present during the assault and failed to stop, intervene, and/or report the misconduct. Cummins' mother was also handcuffed and the officers humiliated, demeaned, and made crude comments to all individuals handcuffed. Cummins was brought into the bathroom and strip searched as other officers searched and tore up the apartment without any justification of a warrant. Both Cummins and Pardo were transported to the precinct, where Pardo was released and Cummins was falsely charged with crimes he did not commit. All criminal charges were dismissed and the civil case against the City of New York et al, has settled in favor of Mr. Cummins and Mr. Pardo, under Index 309113/2010 within the Supreme Court, Bronx County. Upon information and belief, no investigation or disciplinary action was commenced against the officers.

207. As evident from the facts set forth above, the acts of police officers who violate the civil and constitutional rights of the Citizens of New York routinely go unreported by fellow police officers, not investigated by their superior officers, and consequently their acts, actions, omissions go unpunished. Failure to intervene and report is the norm, not the exception. In none of the cases cited in paragraph 206 a-dd above did the police officers intervene in the face of misconduct; nor did they report the misconduct of their fellow officers, or receive and punishment for having failed to do so. Consequently, the acts of police officers in which they use excessive force, engage in racial profiling, making or file false arrests and reports to cover-up their conduct, make warrantless entry into citizens homes, etc., are condoned by other officers present, their supervisors, precinct Commanders, and the NYPD, and ultimately lead to the illegal seizure, arrest, use of force and excessive use of force among other violations against

Parker herein.

208. Upon information and belief, police officers are rarely prosecuted, disciplined or investigated for providing false statements, filing false reports, failing to intervene or report misconduct, and/or making false arrests.

209. The officers herein conspired to deprive the plaintiff of evidence, of a fair trial, of witnesses, of medical attention , and of equal protection of the law and substantive due process. The City's deliberate indifference to their conduct made such violations possible.

210. That the plaintiff's false arrest, assault and battery, and malicious prosecution and violation of his constitutional rights resulted from the defendant City's practices, policies and/or customs, and/or their deliberate indifference to patterns and /or police practices which included excessive use of force; illegal use of police equipment; failing follow police guidelines; failing to monitor or discipline police misconduct; failing to gather evidence when allegations of police misconduct are involved; condoning a code of silence within the police department regarding misconduct; filing resisting arrest charges to cover up illegal use of force by police; engaging in racial profiling; failing to properly supervise, train, investigate or discipline officers; engaging in illegal stop question and frisks, permitting or condoning illegal search and seizure of property and persons, any and /or all of the above contributing to plaintiff's false arrest, and prosecution, and injuries.

211. Defendants actions on January 16, 2014 were performed under the color of law and the policies, statues, ordinances, rules, practices and regulations of the City of New York, and they were performed to the detriment of the plaintiff.

212. That plaintiff did not commit any illegal act, either before or at the time he was

falsely arrested and imprisoned, assaulted, battered, and deprived of his constitutional rights as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983, 1985 and 1986 and the Constitution of the State of New York.

213. That by reason of the aforesaid, the plaintiff was deprived his liberty, lost income, assaulted, injured, maliciously prosecuted, and he was damaged.

214. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks compensatory and punitive damages, costs, attorneys fees, and expert fees as provided by 42 U.S.C. Sections 1983, 1985 1986 and 1988, and such other relief as to the court may seem just and proper.

AS AND FOR AN EIGHTH THROUGH ELEVENTH CAUSE OF ACTION:
ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTION 1983, BY POLICE OFFICER SPATARO, SGT MUNOZ,
DET KHAN AND BARESE IN THEIR INDIVIDUAL CAPACITIES
AND AS AGENTS OF THE CITY OF NEW YORK, THE PLAINTIFF ALLEGES:

215. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "214" with the same force and effect as if more fully and at length set forth herein.

216. That at all times hereinafter mentioned, the defendant "Spataro" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

217. That at all times hereinafter mentioned, the defendant "Barese" was employed by the defendant The City of New York and/or The New York City Police Department and was

acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

218. That at all times hereinafter mentioned, the defendant “Khan” was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

219. That at all times hereinafter mentioned, the defendant “Munoz” was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

220. That at all times hereinafter mentioned, the defendant officers, individually and collectively, were acting pursuant to orders and directives from defendant, The City of New York.

221. That during all times hereinafter mentioned, the defendants “officers”, individually, and/or collectively acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, and engaged in the illegal conduct set forth this complaint to the injury of the plaintiff, and deprived him of the rights, privileges and immunities secured to him by the Fourth, and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Section 1983 and 1986.

222 That the unlawful and illegal conduct of defendants “officers” deprived plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the

United States and of the State of New York:

- a) The right of plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States; and,
- b) The right not to be discriminated against based upon the plaintiff's race, creed, sex, or sexual orientation.
- c) The right to Due Process Law.
- d) The right to equal protection under the law.
- e) The right not to be subjected to cruel and unusual punishment

223. That by reason of the aforesaid violations, use of force, use of arbitrary, excessive and sadistic force, seizure of plaintiff's person, his false arrest and false imprisonment, assault and battery, falsifying evidence, discrimination and malicious prosecution the defendant Police "Officers" violated plaintiff's rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto, "the officers" and violated 42 U.S.C. §1983.

224. That as a direct proximate result of "the officers" actions plaintiff was physically and emotionally injured, lost his job and was subjected to great indignities and humiliation, and pain and distress of mind and body and was humiliated and defamed thereby.

225. That by reason of the aforesaid, plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain,.

226. That by reason of the aforesaid, the plaintiff has been damaged in a sum of exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive

damages, costs, attorneys fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

AS AND FOR A TWELFTH THROUGH FIFTEENTH CAUSE OF ACTION:
ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTION 1985, BY POLICE OFFICER SPATARO, SGT MUNOZ,
DET KHAN AND BARESE IN THEIR INDIVIDUAL CAPACITIES
AND AS AGENTS OF THE CITY OF NEW YORK, THE PLAINTIFF ALLEGES:

227. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "226" with the same force and effect as if more fully and at length set forth herein.

228. That at all times hereinafter mentioned, the defendant "Spataro" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

229. That at all times hereinafter mentioned, the defendant "Barese" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

230. That at all times hereinafter mentioned, the defendant "Khan" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

231. That at all times hereinafter mentioned, the defendant "Munoz" was employed by the defendant The City of New York and/or The New York City Police Department and was

acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

232. That at all times hereinafter mentioned, the defendant officers, individually and collectively, were acting pursuant to orders and directives from defendant, The City of New York.

233 That during all times hereinafter mentioned, the defendants “officers”, individually, and/or collectively acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, and conspired to engage in the illegal conduct set forth this complaint to the injury of the plaintiff, and deprived him of the rights, privileges and immunities secured to him by the First, Fourth, Eighth, and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Section 1985

234 That the defendant “officers” conspired to deprive plaintiff of witnesses, evidence, a fair trial, exculpatory information and material, to intimidate and threaten, to abuse, to degrade, to assault and batter, to deny prompt and necessary medical attention and to due process of law and equal protection of the law.

235. That by reason of the aforesaid violations, use of force, use of arbitrary, excessive and sadistic force, seizure and search of plaintiff’s person, his false arrest and false imprisonment, assault and battery, falsifying evidence, and malicious prosecution, and discrimination the defendant Police “Officers” violated plaintiff’s rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto, “the officers” and violated 42 U.S.C.

§1985.

236. That as a direct proximate result of “the officers” actions plaintiff was imprisoned, physically and emotionally injured, lost his job and was subjected to great indignities and humiliation, and pain and distress of mind and body and was humiliated and defamed thereby.

237. That by reason of the aforesaid, plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain,.

238. That by reason of the aforesaid, the plaintiff has been damaged in a sum of exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorneys fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1985 and 1988, and such other relief as to the court may seem just and proper.

AS AND FOR A SIXTEENTH THROUGH NINETEENTH CAUSE OF ACTION:
ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTION 1986, BY POLICE OFFICER SPATARO, SGT MUNOZ,
DET KHAN AND BARESE IN THEIR INDIVIDUAL CAPACITIES
AND AS AGENTS OF THE CITY OF NEW YORK, THE PLAINTIFF ALLEGES:

239. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "238" with the same force and effect as if more fully and at length set forth herein.

240. That at all times hereinafter mentioned, the defendant “Spataro” was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

241. That at all times hereinafter mentioned, the defendant “Barese” was employed by

the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

242. That at all times hereinafter mentioned, the defendant “Khan” was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

243. That at all times hereinafter mentioned, the defendant “Munoz” was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

244. That at all times hereinafter mentioned, the defendant officers, individually and collectively, were acting pursuant to orders and directives from defendant, The City of New York.

245 That during all times hereinafter mentioned, the defendants “officers”, individually, and/or collectively acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, individually and/or collectively engaged in, or conspired to engage in conduct that was illegal, and though he or they had the ability or power to prevent or aid in the preventing of the commission of the same the “officers” neglected or refused to do so.

246. That the officers, each of them could have aided or prevented the use of force, the use of arbitrary, excessive and sadistic force, the seizure and search of plaintiff’s person, the

plaintiff's false arrest and false imprisonment, the assault and battery, the falsifying of evidence, and malicious prosecution, and discrimination, the defendant Police "Officers" refused or neglected to do so, and thereby violated plaintiff's rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto, "the officers" and violated 42 U.S.C. §1986.

247. That as a direct proximate result of "the officers" actions plaintiff was imprisoned, physically and emotionally injured, lost his job and was subjected to great indignities and humiliation, and pain and distress of mind and body and was humiliated and defamed thereby.

248. That by reason of the aforesaid, plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain,.

249. That by reason of the aforesaid, the plaintiff has been damaged in a sum of exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorneys fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1986 and 1988, and such other relief as to the court may seem just and proper.

AS AND FOR A TWENTIETH CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFF AGAINST THE DEFENDANTS FOR MALICIOUS
PROSECUTION

250. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "249" with the same force and effect as if more fully and at length set forth herein.

251. The defendants filled out false police reports, signed false criminal court

complaint and corroborating affidavits against the plaintiff for the purpose of prosecuting him for the charge of attempted assault in the third degree, resisting arrest and harassment.

252. The defendants took such actions, knowingly and with a malicious disregard for the truth, and did so with the intent to cover up the illegal arrest of the plaintiff and the injuries that he sustained at the hands of the police.

253 The plaintiff was at all times innocent of any crime charged.

254. That due to the malicious prosecution the plaintiff was caused to spend money to obtain legal counsel and attend and appear at Kings County Criminal Court on eight court dates

255 On October 31, 2014 all criminal charges were dismissed against the plaintiff.

256 That by reason of the aforesaid malicious prosecution, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

WHEREFORE, the plaintiffs demand judgment against the defendants in a sum to be determined by the trier of fact, plus costs, attorney's fees, punitive damages (on the fifth through nineteenth causes of action) and such other and further relief as to the Court seems just and proper on the First through the Twentieth causes of action.

DATED: New York, New York
January 16 , 2015

Jeffrey L. Emdin, Esq.,
Emdin & Russell, LLP.
Attorneys for the plaintiff
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ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York certifies as follows:

That I am an attorney associated with the law firm of Jeffrey L. Emdin, Esq., the attorneys of record for the Plaintiff in the within action; that I have read the foregoing Summons and Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.

The undersigned further states that the reason this Summons and Complaint is made by me and not by the Plaintiff is that the Plaintiff do not reside within the county in which my office is located.

The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiff and a reading of the documents in my case file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York
January 16, 2015

By: Jeffrey L. Emdin, Esq.